

Master Service Agreement

Effective Date

___/___/___

Expiration Date

___/___/___

PARTIES

This Master Service Agreement (hereinafter referred to as the “Agreement”) is entered into on _____ (the “Effective Date”), by _____, with an address of _____ (hereinafter referred to as the “Client”) and Revital Productions (hereinafter referred to as the “Service Provider”) (collectively referred to as the “Parties”).

SERVICES PROVIDED

The Service Provider agrees to provide marketing, digital production, and related services to Client as described in one or more Statements of Work (“SOW”) executed by both parties and incorporated here in by reference. Each SOW shall specify the services, deliverables, timeline, and fees applicable to that engagement. In the event of a conflict between the Agreement and any SOW, the terms of the SOW shall control with respect to that specific engagement.

PAYMENT TERMS

1. General Payment Terms

- a. Client agrees to pay Service Provider the fees set forth in each SOW in accordance with the payment schedule specified therein.
- b. All fees are exclusive of applicable taxes, including sales tax, where required by law. Client is responsible for all applicable taxes unless otherwise specified.
- c. All fees are non-refundable for services already rendered or initiated.
- d. Client is responsible for all third-party costs including but not limited to advertising platform fees, software subscriptions, stock licenses, and domain/hosting fees unless otherwise specified in the applicable SOW.
- e. Service Provider reserves the right to adjust pricing at renewal with a minimum of thirty (30) days written notice prior to the renewal date.

2. Recurring Retainer Billing (Monthly Clients)

- a. **Payment Processor:** Revital Productions processes all recurring payments through Stripe, a third-party payment platform. By entering into a retainer agreement, Client authorizes Revital Productions to charge the payment method on file via Stripe on a recurring monthly basis.
- b. **Billing Date:** Unless otherwise specified in the SOW, recurring retainer fees are billed on the **1st of each month**, in advance for that month's services.
- c. **Payment Method:** Client agrees to maintain a valid payment method on file with Stripe at all times. Client may update their payment method at any time via the Stripe customer portal link provided by Service Provider.
- d. **First Payment:** The first payment is due upon signing of the SOW or at the time of onboarding. The first payment covers the first full billing period and confirms Client's intent to begin services.
- e. **Automatic Renewal:** Unless Client provides written notice of cancellation in accordance with section Term and Termination, retainer services renew automatically each month and the associated fee is charged to the payment method on file.

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f. **Failed Payments:** If a payment fails, Stripe will automatically retry the charge according to the following schedule

- i. Day 1 - Initial charge attempt
- ii. Day 3 - First retry
- iii. Day 5 - Second try
- iv. Day 7 - Third retry
- v. Day 14 - Final retry

Client will receive automatic email notifications from Stripe for each failed attempt. It is Client's responsibility to ensure their payment method is valid and has sufficient funds.

g. **Service Suspension:** If payment has not been successfully collected after all retry attempts (Day 14), Service Provider reserves the right to immediately pause all services without further notice until the outstanding balance is resolved. Service Provider is not liable for any delays, missed deadlines, or lost opportunities resulting from a service suspension due to non-payment.

h. **Reactivation:** Services suspended due to non-payment will be reinstated within two (2) business days of full payment received, subject to team availability. Service Provider is not obligated to backfill or deliver work that was missed during the suspension period.

i. **Late Payment Fee:** Any outstanding balance not resolved within thirty (30) days of the original billing date will accrue a late fee of **1.5% per month** on the unpaid balance until paid in full.

j. **Stripe Disputes & Chargebacks:** Client agrees not to initiate a chargeback or payment dispute with their card issuer or bank without first contacting Service Provider in writing and allowing ten (10) business days to resolve the issue. Initiating a chargeback without prior notice constitutes a breach of this Agreement. Service Provider reserves the right to recover chargeback fees, dispute costs, and legal fees resulting from any unwarranted chargeback.

3. Project-Based & One-Time Billing

a. **Deposit:** Project-based work requires a non-refundable deposit as specified in the SOW, typically fifty percent (50%) of the total project fee, due upon signing.

b. **Balance Due:** The remaining balance is due upon delivery of final files or as otherwise specified in the SOW. Final deliverables will not be released until full payment is received.

c. **Rush Fee:** Projects requested with less than forty-eight (48) hours' notice are subject to a rush fee of twenty-five percent (25%) to fifty percent (50%) of the total project fee as specified in the SOW.

d. **Kill Fee:** If Client cancels a project after work has commenced, Client is responsible for paying a kill fee equal to the deposit already paid plus any additional costs incurred by Service Provider up to the date of the cancellation.

e. **Charge Orders:** Any scope changes after SOW execution require a written Change Order signed by both parties. Work on the change will not begin until the Change Order is signed and any associated deposit is paid.

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4. Ad Spend & Third-Party Platform Fees

- a. Ad spend is separate from and in addition to Revital Productions' service fees. Unless otherwise specified in the SOW, Client is solely responsible for funding all advertising platform accounts (*Meta, Google, Tiktok, LinkedIn, etc.*).
- b. Client shall not run ad spend through Revital Productions' payment accounts. Each Client's ad spend is billed directly to Client's own payment method on the respective advertising platform.
- c. Revital Productions is not responsible for any advertising platform charges, overages, or billing disputes between Client and the advertising platform.
- d. If Revital Productions is required to front ad spend on Client's behalf, such arrangement must be explicitly documented in the SOW, and Client agrees to reimburse Service Provider within five (5) business days of invoice.

5. Invoicing & Records

- a. All payment receipts and invoices are automatically generated and sent via Stripe to the email address on file.
- b. Client is responsible for maintaining accurate billing contact information in their Stripe customer portal. Failure to receive invoices due to an outdated email address does not constitute grounds for non-payment.
- c. Stripe payment records serve as the official billing record for all transactions. Client may access their full billing history, download invoices, and manage their payment method at any time through the Stripe customer portal.
- d. For discrepancies or billing questions, Client must notify Service Provider in writing within thirty (30) days of the invoice date. Disputes raised after thirty (30) days will not be considered.

TERM AND TERMINATION

1. This Agreement shall commence on the Effective Date and continue until terminated by either party.
2. Either party may terminate this Agreement or any active SOW with thirty (30) days prior written notice delivered via email to the addresses set forth above.
3. Written cancellation notice must be received by Service Provider no later than the **20th of the month** to avoid being charged for the following month's retainer. Cancellations received after the 20th will be effective at the end of the following billing cycle.
4. Service Provider may terminate immediately upon written notice if:
 - a. Client fails to pay any amount due within fifteen (15) days of the due date
 - b. Client initiates an unwarranted chargeback or payment dispute
 - c. Client breaches any material term of this Agreement and fails to cure such breach within ten (10) days of written notice
5. Upon termination, Client shall pay all fees for services rendered through the termination date. No refunds shall be issued for prepaid fees or the current billing period.

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6. Termination of this Agreement shall not affect any rights or obligations accrued prior to the termination date.

INTELLECTUAL PROPERTY

1. Upon receipt of full payment, all final deliverables produced by Service Provider specifically for Client under this Agreement shall become the exclusive property of Client.
2. Work in progress, unpaid deliverables, and any materials not fully paid for shall remain the property of Service Provider.
3. Service Provider retains ownership of all pre-existing intellectual property, tools, templates, processes, and methodologies used in the performance of services.
4. Client grants Service Provider a limited, non-exclusive license to use Client's brand assets, trademarks, and materials solely for the purpose of providing services under this Agreement.
5. Service Provider reserves the right to display completed work in its portfolio, website, and marketing materials unless Client requests otherwise in writing within thirty (30) days of delivery.

CONFIDENTIALITY

1. Each party ("Receiving Party") agrees to keep confidential all non-public information disclosed by the other party ("Disclosing Party") in connection with this Agreement, including but not limited to business strategies, pricing, client lists, financial information, and proprietary processes ("Confidential Information").
2. The Receiving Party shall not disclose Confidential Information to any third party without prior written consent and shall use Confidential Information solely for the purpose of performing obligations under this Agreement.
3. These confidentiality obligations shall survive the termination of this Agreement for a period of three (3) years.
4. Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was already known to the Receiving Party prior to disclosure; (c) is independently developed by the Receiving Party; or (d) is required to be disclosed by law or court order.

REPRESENTATIONS AND WARRANTIES

1. Each party represents and warrants that: (a) it has the authority to enter into this Agreement; (b) this Agreement does not conflict with any other agreement to which it is a party of; (c) it will comply with all applicable laws in connection with this Agreement.
2. Client represents and warrants that it owns or has the right to use all materials, content, and assets provided to Service Provider for use in delivering services.

LIMITATION OF LIABILITY

1. Service Provider's total liability to Client for any claim arising under this Agreement shall not exceed the total fees paid by Client to Service Provider in the three (3) months immediately preceding the claim.

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2. In no event shall Service Provider be liable for any indirect, incidental, special, consequential, or punitive damages, including but not limited to loss of revenue, loss of profits, or loss of data, even if advised of the possibility of such damages.
3. Service Provider does not guarantee specific marketing results including but not limited to revenue growth, follower counts, search engine rankings, or advertising return on investment. Marketing outcomes are subject to factors outside Service Provider's control including market conditions, platform algorithm changes, and client industry dynamics.

INDEMNIFICATION

Client agrees to indemnify, defend, and hold harmless Service Provider and its officers, employees, and contractors from and against any claims, damages, losses, and expenses (including reasonable attorney's fees) arising out of or related to: (a) Client's breach of this Agreement; (b) Client's use of deliverables in a manner not authorized by this Agreement; or (c) any claim that Client's materials or content infringe the intellectual property rights of any third party.

INDEPENDENT CONTRACTOR

Service Provider is an independent contractor and not an employee, partner, or agent of Client. Service Provider is solely responsible for all taxes, insurance, and benefits related to its personnel. Nothing in this Agreement shall be construed to create an employment, partnership, joint venture, or agency relationship.

DISPUTE RESOLUTION

1. The parties agree to first attempt to resolve any dispute through good-faith negotiation.
2. If the dispute cannot be resolved through negotiation within thirty (30) days, the parties agree to submit the dispute to mediation before pursuing litigation.
3. This Agreement shall be governed by the laws of the State of Louisiana. Any legal action shall be brought in the courts of (*Parish*), Louisiana.

GENERAL PROVISIONS

1. **Entire Agreement:** This Agreement, together with all SOWs executed hereunder, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior agreements and understandings.
2. **Amendment:** This Agreement may only be amended by a written instrument signed by both parties.
3. **Waiver:** Failure to enforce any provision of this Agreement shall not constitute a waiver of future enforcement.
4. **Severability:** If any provision of this Agreement is found to be unenforceable, the remaining provisions shall continue in full force and effect.
5. **Notices:** All notices shall be in writing and delivered via email or certified mail to the addresses set forth above.
6. **Force Majeure:** Neither party shall be liable for delays caused by circumstances beyond its reasonable control, including natural disasters, government actions, or platform outages.

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SIGNATURES

CLIENT

Company Name

Client Signature

Client Printed Name

Client Title

Client Date

REVITAL PRODUCTIONS

Service Provider Signature

SP Printed Name

Service Provider Title

Service Provider Date